

Stereo.HCJDA 38.
JUDGMENT SHEET.
LAHORE HIGH COURT,
RAWALPINDI BENCH RAWALPINDI.
JUDICIAL DEPARTMENT

WRIT PETITION NO.2913 OF 2024

MUHAMMAD IMRAN

versus

SHAHBAZ ALI KHAN and others.

JUDGMENT

Date of hearing: **26.06.2025.**

Petitioner by: Malik Jawwad Khalid, Advocate.

Respondent No.1 by: Syed Qamar Abbas Shamsi, Advocate.

Mirza Viqas Rauf, J. This single judgment shall govern tilted writ petition as well as Writ Petition No.2914 of 2024, raising similar questions of law and facts.

2. This petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 stems from order dated 19th September, 2024, whereby learned Additional District Judge, Rawalpindi proceeded to dismiss the appeal preferred by the petitioners, herein, against order dated 22nd July, 2024 passed by learned Special Judge (Rent), Rawalpindi, being barred by time.

3. Facts germane for adjudication of this and connected petition are that respondent No.1 (hereinafter referred to as “**respondent**”) claiming himself to be landlord of the premises in question filed two applications under Section 19 of the Punjab Rented Premises Act, 2009 (hereinafter referred to as “**Act, 2009**”), seeking eviction of the petitioners, herein, on the grounds mentioned therein. In order to resist the ejectment proceedings, the petitioners filed their applications for

leave to contest denying relationship of landlord and tenant. In the light of stance taken in the applications for leave to contest, leave was granted to the petitioners by way of order dated 03rd November, 2023 and resultantly, issues in the light thereof were framed. After recording of evidence, ejectment applications were ultimately allowed vide separate orders dated 22nd July, 2024. Feeling aggrieved, the petitioners preferred their respective appeals before the learned Additional District Judge but the same were dismissed *in limine*, being barred by time.

4. Learned counsel for the petitioners contended that after passing of the eviction order, the petitioners applied for certified copies of the orders, which were not prepared on the date given to the petitioners and after preparation of the copies, no notice was issued to the petitioners and as a result, they obtained certified copies on 09th September, 2024 whereafter the appeals were preferred which are well within time. Learned counsel submitted that in the circumstances, the appeals should not have been dismissed on account of limitation. In support of his contentions, learned counsel placed reliance on CANTONMENT BOARD KHARIAN CANTT versus MUHAMMAD SHAFI (PLJ 1991 SC 159), AHMAD NAWAZ and Others versus MUHAMMAD AYUB (PLJ 1988 SC 144) and Sheikh MUHAMMAD SALEEM versus FAIZ AHMAD (PLD 2003 Supreme Court 628).

5. Conversely, learned counsel for the **respondent** submitted that the appeals were clearly barred by time from the date when certified copies were prepared and as such impugned orders are unexceptionable. Placed reliance on Mian MUHAMMAD SABIR versus Malik MUHAMMAD SADIQ through Legal Heirs and others (PLD 2008 Supreme Court 577) and FATEH MUHAMMAD AND OTHERS versus Malik QADIR BAKHSH (1975 SCMR 157).

6. After having heard learned counsel for the parties at considerable length, I have perused the record.

7. The appeals of the petitioners were since dismissed on account of limitation, so the prime question involved in these constitutional

petitions is as to from what point of time the limitation for filing of appeal(s) is to be counted, either for the said purpose, date of preparation of the certified copy of the order or judgment is taken into consideration or the date of delivery. Section 12 of the Limitation Act, 1908 (hereinafter referred to as “**Act, 1908**”) provides a mechanism for exclusion of time in legal proceedings for the purpose of computing the period of limitation for instituting a suit, preferring an appeal or moving an application and it reads as under:-

12. Exclusion of time in legal proceedings.– (1) In computing the period of limitation prescribed for any suit, appeal or application, the day from which such period is to be reckoned shall be excluded.

(2) In computing the period of limitation prescribed for an appeal, an application for leave to appeal and an application for a review of judgment, the day on which the judgment complained of was pronounced, and the time requisite for obtaining a copy of the decree, sentence or order appealed from or sought to be reviewed, shall be excluded.

(3) Where a decree is appealed from or sought to be reviewed, the time requisite for obtaining a copy of the judgment on which it is founded shall also be excluded.

(4) In computing the period of limitation prescribed for an application to set aside an award, the time requisite for obtaining a copy of the award shall be excluded.

[(5) For the purposes of sub-sections (2), (3) and (4), the time requisite for obtaining a copy of the decree, sentence, order, judgment or award shall be deemed to be the time intervening between the day on which an application for the copy is made and the day actually intimated to the applicant to be the day on which the copy will be ready for delivery.]

[Underlining supplied for emphasis]

From the perusal of Sub-Section (2) above, it is manifestly clear that in computing the period of limitation prescribed for an appeal, the day on which the judgment complained is pronounced, and the ‘*time requisite*’ for obtaining a copy of the decree, or order appealed from shall be excluded. Sub-Section (5), on the other hand, ordains that for the purposes of Sub-Sections (2), (3) and (4), the ‘*requisite time*’ for obtaining a copy of decree, sentence, order, judgment or award shall be deemed to be the time intervening between the day on which an

application for the copy is made and the day actually intimated to the applicant to be the day on which the copy will be ready for delivery. It would not be out of context to mention herein that initially Sub-Section (5) was not part of Section 12 of **the Act, 1908** and it was introduced as part of the said provision in the year 1991 through Limitation (Amendment) Act, XIII of 1991, keeping in view the observations recorded by the Supreme Court of Pakistan in the case of Ahmad Nawaz (*supra*). Section 5 of the **Act, 1908** empowers a court to extend the period of limitation in certain cases. As the ejectment applications were filed under the Provisions of the **Act, 2009** so the order passed therein is appealable under Section 28 of the **Act, 2009**, which provides 30-days' time period to an aggrieved person to prefer an appeal against the final order. Section 12 of the **Act, 1908** more specifically Sub-Section (5) though mandates that for the purposes of Sub-Sections (2), (3) and (4), '*time requisite*' for obtaining a copy of the decree, sentence, order, judgment or award shall be deemed to be the time intervening between the day on which an application for the copy is made and the day actually intimated to the application to be the day on which the copy will be ready but it does not say in clear words that limitation shall be counted from the dated of delivery of order or judgment.

8. Looking at the case of petitioners, in the above backdrop, it appears that eviction order was passed on 22nd July, 2024, for the obtaining of copy of which, the application was moved on 29th July, 2024 whereas copy was prepared on 15th August, 2024 but it was received by the petitioners on 09th September, 2024. The appeals were then preferred on the next day and as such it were adjudged being barred by time. So far, the case of Sheikh Muhammad Saleem (*supra*), relied upon by learned counsel for the petitioners, in support of his contentions, is concerned, facts of the said case are altogether different as compared to the case in hand. In the said case, on two different occasions, copies of the judgment were applied; one for private use and one for filing the appeal before the Supreme Court of Pakistan and in that backdrop, it was observed by the Supreme Court of Pakistan that it

is strange to note that though the latter certified copy of the judgment was prepared on 17th April, 2001, the same day when it was applied for but it was obtained on 20th April, 2001 and after taking its delivery the filing of the appeal was delayed for another six days for which no explanation has been offered and appeal was thus dismissed, being barred by time in the said case. In the case of Ahmad Nawaz (*supra*), the Supreme Court of Pakistan observed that the period spent in procuring certified copies of the judgment does not, by itself, warrant exclusion for the purposes of limitation, rather, any delay in filing must be justified with a sufficient and satisfactory explanation, evaluated in light of the specific facts and circumstances of the case. In the case of Cantonment Board Kharian Cantt (*supra*), Supreme Court of Pakistan observed that where rules of court or copying agency provides a date to the applicant when the certified copy will be ready, 'time requisite' for obtaining certified copy would be the time which is taken between date of application and last date communicated by official of copying branch for taking delivery of the certified copy.

9. Contrary to above, in the case of Fateh Muhammad (*supra*), the Supreme Court of Pakistan has held that 'time requisite' for obtaining certified copy of order within the meaning of Section 12 of the **Act, 1908** means only the interval between the date of application for supply of copy and the date when it is ready for delivery. Even during this interval, due diligence on the part of the litigant is required by law and no delay, unless such as was caused by the circumstances, which he had no control and which could not by due diligence can be avoided, form part of 'time requisite' for obtaining certified copy. The time between the date on which the copy is ready for delivery and the date on which the applicant chooses to take delivery thereof is not a limb of the 'time requisite' for obtaining certified copy. In the case of Mian Muhammad Sabir (*supra*), Larger Bench of the Supreme Court of Pakistan, while dealing with the similar proposition, held as under:-

5. We have heard the learned counsel for the parties and examined the material available on record. Even according to the

narrative furnished by the learned counsel, (viz. the appellant applied for the certified copy on 12-2-1998, it was prepared and ready for delivery on 21-2-1998 and the petition was filed on 30-10-1998) the petition was barred by 8 months and 9 days. The stance of the learned counsel is that is if the time is computed from date of delivery of the certified copy of the impugned judgment, then the petition is within time. Learned counsel when asked as to why chit/receipt issued by the copying branch was not placed on record stated that he is not aware as to whether chit or receipt was issued by the copying agency or not as the certified copy was applied by the appellant. The learned counsel has also not been able to disclose about the date, which was given by the copying agency or indicated on the receipt issued by the copying agency to obtain certified copy. It is a matter of common knowledge that when a person applied for certified copy, the copying agency issues a receipt/chit indicating tentative date of preparation of certified copy and on that date and applicant is obliged to enquire from the copying agency as to whether the requisite copy is prepared or not. Interestingly, the appellant in his application for condonation of delay even did not mention the date given by the copying agency to the appellant for obtaining the certified copy of the judgment. This Court in a case reported as Fateh Muhammad and others v. Malik Qadir Bakhsh (1975 SCMR 157) has held that the time "requisite" for obtaining copy of order within the meaning of section 12 of the Limitation Act, 1908, means only the interval between the date of application for supply of copy and the date when it is ready for delivery and that the time between the date on which the copy was ready for delivery, and the date on which the applicant chooses to take delivery thereof is not a portion of time "requisite" for obtaining a copy. Even section 12(5) of the Limitation Act is of no help to the appellant as he failed to produce the chit/receipt issued by the copying agency showing the date for preparation of certified copy, inasmuch as, no such date has been indicated in the application for condonation of delay. Had the appellant produced a chit issued by the copying agency and the copy was not ready on the date indicated in the

chit, then the appellant could have taken shelter under section 12(5) of the Limitation Act. This Court under the similar facts and circumstances of the case reported as *Zulfiqar Ali v. Superintendent of Police and others* (2003 SCMR 1562) refused to condone the delay of nearly 50 days while in the present case the delay is of 249 days. The case of *Zulfiqar Ali* (ibid) applies to the facts and circumstances of the case in hand on all fours.

10. The law to the above effect, however, further evolved with the passing days and in the case of *PAK LEATHER CRAFTS LIMITED and others versus AL-BARAKA BANK PAKISTAN LIMITED* (2022 CLD 1296), Supreme Court of Pakistan, while expounding the scope of Section 12 of the **Act, 1908** held as under:-

11. Likewise, in the case of *West Pakistan Industrial Development Corporation v. Aziz Qureshi* (PLD 1973 Supreme Court 222), the view taken by Lahore High Court in the case of *Gul Mohammad v. Allah Ditta* (PLD 1960 Lahore 443) was affirmed by this Court by holding:-

"In the case under report it has been held that the "time requisite" for obtaining copies which can be excluded under section 12, Limitation Act, is the time which is taken between the date of application and the date when the copies are ready, but it can be further extended if further delay takes place by reason of the carelessness of the office in giving wrong Information to the applicant as to the date on which the copies would be ready, or in giving no information at all".

12. In the case of *Fateh Muhammad and others v. Malik Qadir Bakhsh* (1975 SCMR 157), the term "time requisite" was elaborated in the following terms:-

"It is well settled that the time requisite for obtaining copy of order within the meaning of section 12 of the Limitation Act, 1908 means only the interval between the date of application for supply of copy and the date when it is ready for delivery. Even during this interval, due diligence on the part of the litigant is required by law, and no delay, unless such as was caused by circumstance over which he had no control and which he could not by due diligence be avoided, can form part of time "requisite" for obtaining the copy. The time between the date on which the copy is ready for delivery, and the date on which the applicant chooses to take delivery thereof is not a portion of the time "requisite" for obtaining a copy."

13. In the case of *Mst. Jamila Khatoon and another v. Mst. Tajunnisa and others* (PLD 1984 Supreme Court 208), again the

term time requisite came for consideration before this Court and after observing that the appellant in order to claim exclusion of time under section 12 of the Limitation Act must act with reasonable promptitude and diligence in order to satisfy the Court that the time which he claims to be excluded was properly required in obtaining copies, it was held:-

"In failing to deposit the stamps and wasting 37 days, without any sufficient cause the appellant was clearly to blame and the time thus spent cannot be held to be "time requisite" for obtaining copies."

14. In the case of Ahmed Nawaz v. Muhammad Ayub (PLD 1988 Supreme Court 258), the petitioner in the stated case was relying on West Pakistan Industrial Development Corporation Karachi v. Aziz Qureshi (1973 SCMR 555) by claiming that the time between the date when the copy is ready and the date when it was delivered, should have been excluded as of a right being "time requisite" for obtaining the copy, and this Court while relying on its own judgment in the case of Fateh Muhammad (supra) held that under the existing law (Section 12 of the Limitation Act) the period, as in dispute in this case, could not be excluded as of a right, however, in a given case, the delay could be condoned only on furnishing of sufficient explanation in that behalf. In this background to eliminate uncertainty and difficulty faced by the litigants regarding the period spent between the date when the copy is ready for delivery and the date for obtaining delivery a legislative intervention was proposed and consequently in 1991 subsection (5) was introduced in section 12 of the Limitation Act, which reads as follows:-

"For the purposes of subsections (2), (3) and (4), the time requisite for obtaining a copy of the decree, sentence, order, judgment or award shall be deemed to be the time intervening between the day on which an application for the copy is made and the day actually intimated to the applicant to be the day on which the copy will be ready for delivery".

15. Before we proceed to examine the effect of afore-stated deeming provision, we would like to examine the cases decided by this Court after the introduction of subsection (5) to section 12 of the Act through a deeming provision. The first judgment in time was in the case Nooruddin v. Pakistan (2000 SCMR 354). In this case though the provisions of subsection (5) were examined but no findings thereon were recorded as the controversy was the announcement of judgment during vacation without notice to the parties and the commencement of limitation from the date of knowledge of the judgment intended to be challenged or otherwise. Thereafter another two-Member Bench of this Court in the case of Shujahat Hussain v. Muhammad Habib (2003 SCMR 176) accepted the contention that notice as required under section 12(5) of the Limitation Act for collecting the copies was not received and in case the time was calculated from the day of certifying copy, the petition was well within time. The relevant portion from the judgment reads as under:-

"According to learned counsel, the office of the Copyist Branch had not issued notice to petitioner for collecting the certified copy of the judgment for a particular date in terms of section 12(5) of the Limitation Act and if the time is calculated from, the date of certifying the copy i.e. 11th December, 2001, then the petition is within time which was submitted on 12th January, 2002.

In view of above position, we are of the opinion that the petition is within time".

16. However, no reasons whatsoever for accepting such contentions were laid down. Thereafter this Court in the case of Iftikhar Ali v. Abdul Rashid (2003 SCMR 1560) had the opportunity of examining the provision of subsection (5), on an argument that according to section 12(5) of the Limitation Act, the time spent for obtaining certified copy would extend to the date when the certified copy of the judgment was delivered. A three-Member Bench of this Court was of the view that the intimation of the day when the copy is made ready is to be stated by the applicant by producing a chit issued by the copying agency. The observations in para 4 are to the following effect but again the observations were without examining the effect of the deeming clause:-

"4. Learned counsel for the petitioner when questioned has no answer as in the said application, it was not disclosed as to the date which was indicated to the petitioner on the chit issued by the Copying Agency to obtain certified copy because that would have been the determining factor, because originally in routine on the Chit, date is indicated by the Copying Agency on which date the applicant is required to inquire from the Copying Agency about the readiness of the copy. If the same was not ready on the said date, then the question would have arisen whether further notice should be given to the petitioner or not, therefore, in our view even if the reasons given by the learned Judge of the High Court that section 5 of the Limitation Act was not applicable are ignored and the arguments of the learned counsel for the petitioner is considered, the same has no factual basis as no pleading was made as observed above as to the date which was given to the petitioner originally to procure copy from the Copying Agency."

17. Finally the last judgment which came to our notice on the question of limitation was again of a three-Member Bench of this Court in the case of Muhammad Sabir v. Muhammad Sadiq (PLD 2008 SC 577) wherein this Court refused to accept the proposition as is propounded today and held that to claim the benefit of newly introduced subsection (5), the applicant has to discharge his burden by producing the chit issued by the copying agency mentioning the date on which certified copy will be made ready. The relevant portion of the observations reads as follows:-

"This Court in a case reported as Fateh Muhammad and others v. Malik Qadir Bakhsh (1975 SCMR 157) has held that the time "requisite" for obtaining copy of order within the

meaning of section 12 of the Limitation Act, 1908, means only the interval between the date of application for supply of copy and the date when it is ready for delivery and that the time between the date on which the copy was ready for delivery, and the date on which the applicant chooses to take delivery thereof is not a portion of time "requisite" for obtaining a copy. Even section 12(5) of the Limitation Act is of no help to the appellant as he failed to produce the chit/ receipt issued by the copying agency showing the date for preparation of certified copy, inasmuch as, no such date has been indicated in the application for condonation of delay. Had the appellant produced a chit issued by the copying agency and the copy was not ready on the date indicated in the chit, then the appellant could have taken shelter under section 12(5) of the Limitation Act."

18. A study of post amendment case law shows that the effect, purpose and limits of the newly added subsection (5) through a deeming provision was never examined, consequently, this brings us to the core issue of examining the newly added sub-Section. A bare reading of subsection (5) reflects that this legislative intervention has been made through a deeming provision, a legal fiction, to treat the intervening time between the day of making an application for the certified copy and the day actually intimated to the applicant by which the copy will be made ready for delivery to be the time requisite for obtaining the required copies, however, this provision cannot be read in isolation by employing literal meaning to it. The principles to interpret deeming provisions in a statute have been settled by this Court in its various pronouncements while interpreting deeming provisions in a statute by holding that the Court is bound to ascertain the limits, purpose and object for which the legislature has created the fiction by adopting deeming provision. In the case of Mehreen Zaibun Nisa v. Land Commissioner, Multan and others (PLD 1975 SC 397), the effect of deeming clauses was summarized as under:-

- (i) *"When a statute contemplates that a state of affairs should be deemed to have existed, it clearly proceeds on the assumption that in fact it did not exist at the relevant time but by a legal fiction we are to assume as if it did exist.*
- (ii) *Where a statute says that you must imagine the state of affairs, it does not say that haying done so you must cause or permit your imagination to boggle when it comes to the inevitable corollaries of that state of affairs.*
- (iii) *At the same time, it cannot be denied that the Court has to determine the limits within which and the purposes for which the Legislature has created the fiction.*
- (iv) *When a statute enacts that something shall be deemed to have been done which in fact and in truth was not done, the Court is entitled and bound to ascertain for what purposes and between what persons the statutory fiction is to be resorted to".*

19. This principle was again reiterated by this Court in the case of Begum B.H. Sued v. Mst. Afzal Jehan (PLD 1980 SC 29) by holding that "the Court has to determine the limits within which and purpose for which the legislature has created a fiction". Likewise in the case of Muhammad Mubeen-us-Salam v. Federation of Pakistan (PLD 2006 SC 602), this Court while taking note from "Understanding Statutes" by S.M. Zafar, observed:-

"It is important to note that two important concepts have been introduced by the learned author in the construction of the provision creating a statutory fiction, namely; 'statutory fiction should be carried to its logical conclusion as held in Muhammad Yasin v. Sheikh Ghulam Murtaza and another (PLD 1988 SC 163) but the fiction cannot be extended beyond the language of the section by which it is created or by importing another fiction', therefore, to find out a solution, it has been observed that 'principle of harmonization shall be attracted' and ultimately it was held that the impact of deeming clause could be curtailed if it produces a disgraceful result".

20. Keeping in mind the principles of interpreting a deeming provision, we need to determine the limits within which and the purpose for which the legislature has created this fiction. It appears that the legislature, by introducing subsection (5) to section 12 of the Act has eliminated the controversy regarding the term "time requisite" and for the first time has defined the term by laying down that the "time requisite" for obtaining a certified copy of the decree, order or such other prescribed proceedings, would be deemed to be the time intervening between the day on which an application for certified copy is made and the day actually intimated to the applicant to be the day on which the certified copy is ready for delivery. The interpretation proposed by the learned ASC for the appellants that mere filing of an application would suffice to stop the period of limitation would not only be against the spirit and purpose for which the legislature has created the fiction, but would also be against the purpose and object for which the legislative intervention was suggested by this Court. Besides, this interpretation would not only render the scheme of law behind the limitation Act as redundant but at the mercy of the litigant. Admittedly, the application for certified copies referred to is not entertained and/or processed till the prescribed fee/cost is paid and in case such interpretation is accepted that mere filing of application would stop the period of limitation then by not paying the prescribed fee/cost one could prolong the period of limitation as has happened in the instant case, which would be against the intention and purpose of the legislation. This interpretation not only appears to be against the reasons and object of the law of limitation but would substantially frustrate it. The law of Limitation seeks to prescribe the time limit for invoking remedies in order to curtail period of suspense and uncertainty and ensure peace of mind to the parties, and such interpretation would be against the very purpose of the statute as it would prolong the period of uncertainty and suspense.

21. It is also very important to note that the computation of

period of limitation prescribed by section 12 mainly deals with appeals, application for leave to appeal, application for review judgment and application to set-aside an Award and these proceedings have the minimum time period prescribed in the Limitation Act which ranges between 15 to 90 days excluding the time consumed for obtaining the certified copies. In case the interpretation proposed by the learned ASC for the appellants is accepted then one would file an application for certified copy and by not paying the cost could prolong the restricted period of limitation which would frustrate the very purpose by which the legislature has curtailed the period of suspense and uncertainty for the litigants to ensure their peace of mind. Coming back to the limits and the purpose for which the legislature has created this fiction by introducing subsection (5) to section 12 of the Act. Admittedly, this legislative intervention of adding subsection (5) to section 12 was proposed by this Court in the case of Ahmed Nawaz (supra) and this Court before proposing the legislative intervention had examined the case law and to eliminate uncertainty and difficulty faced by the litigants regarding the period spent between the date when the copy is ready for delivery and the date of obtaining the delivery of copy. A minute examination of pre-amendment case law would reflect that the dispute was mostly with regard to non intimation or wrong intimation of date on which the copy was ready for delivery. In the cases of Gul Muhammad v. Allah Ditto (PLD 1960 Lah. 443), West Pakistan Industrial Development Corporation of Pakistan v. Aziz Qureshi (PLD 1973 SC 222), Saleh Muhammad and others v. Malik Qadir Bakhsh (1975 SCMR 157) and Ahmed Nawaz v. Muhammad Ayub (PLD 1988 Supreme Court 258) (which led to proposing legislative intervention). In all these cases, the dispute was the period between the date on which copy was made ready and the date on which it was delivered.

22. In the circumstances subscribing to the proposed view that filing of application would stop the period of limitation appears to be against the spirit and purpose of the proposed amendment and is bound to bring disgraceful results unless all the rules requiring payment of cost/fee for the certified copies in advance are suitably amended/repealed and provisions for supply of free certified copies are introduced. Consequently, we are of the view that filing of application pre-supposes the payment of cost for obtaining certified copies. In the instant case, since the appellants have consumed almost 38 days in payment of cost/fee for the certified copies and there appears to be no explanation on record to show that this non-payment could be attributed to the office in estimating the cost/fee for preparing the certified copies, therefore, cannot be excluded while computing the period of limitation.

23. Coming to the second submission that the limitation to commence from the date intimated through notice on which date the copy was ready for delivery. A perusal of subsection (5) shows that it provides commencement of period of limitation from the day actually intimated to the applicant to be the day on which the copy

will be ready for delivery. The proposition propounded by the ASC that the intimation notice shall be issued once the copy is made ready and on receipt of such intimation the period of limitation would commence, in our opinion, from the very reading of subsection (5) appears to be ill-founded. A careful reading of subsection (5) shows that the intimation of the day on which the copy will be ready for delivery by the very language adopted by subsection (5) appears to be an intimation of a future date, a date expected by the office by which it would be in a position to make the copy ready for delivery. It does not envisage a notice after the certified copy is ready for delivery. In our opinion, it is a date intimated to the applicant after he has effectively made the application for the certified copies i.e. upon payment of cost/fee to be a date acknowledging receipt of cost/fee and providing a date on which copy would be ready for delivery. It also cast a duty upon the applicant that while making the payment of cost/fee for certified copy to obtain a receipt containing a date when the certified copies will be ready for delivery to eliminate once for all the pre-amendment dispute of non-intimation of date on which the certified copies are ready for delivery. Since the burden to demonstrate that the copies were not ready on the day intimated to the applicant to be the day on which the copy will be ready for delivery is upon the applicant, therefore, in case of non delivery of certified copy on the date intimated to the applicant then in order to eliminate the controversy and to discharge his burden the applicant should accordingly take a fresh date so that the dispute of applicant having different date and the copy containing different date of "copy ready for delivery" comes to an end.

11. Learned counsel for the petitioners though placed on record copy of C.D.10 issued by the copying agency and contended that in terms thereof, the petitioner was given date of delivery of certified copies on 06th August, 2024 but same were not ready on the said date, as the same were prepared during summer vacation on 15th August, 2024; suffice to observe that this contention of learned counsel for the petitioners is clearly contrary to the averments of the applications for condonation of delay, accompanying the appeals wherein stance of the petitioners is that they applied for obtaining certified copies of the orders but no date was given for supply of the same and they though remained inquiring about the preparation of the certified copies but copying agency, after preparing the certified copies of the impugned orders, did not serve any notice upon them and as the certified copies of the orders were prepared during summer vacation on 15th August, 2024 so the petitioners attained knowledge on 09th September, 2024 and on the date of receiving the certified copies, they preferred their appeals. The petitioners thus not

only took a summersault before this Court today but also failed to justify the delay in filing appeals before the appellate court.

12. The nutshell of above discussion is that the petitioners have failed to prefer their appeals within prescribed period and time, as such learned Additional District Judge, Rawalpindi has rightly adjudged the same, being barred by time. Resultantly, this and connected writ petition, being bereft of any merits, are **dismissed** with no order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

Sajjad

APPROVED FOR REPORTING

JUDGE